IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

COMMERCIAL COURT (KBD)

Claim No. CL-2026-000214

BETWEEN:

HARTWELL PHARMA LIMITED

(company number 07412559)

Claimant

- and -

CRYOVANCE COLD CHAIN LIMITED

(company number 09238871)

Defendant

PARTICULARS OF CLAIM

The Parties

1. The Claimant ("Hartwell") is a company incorporated in England and Wales which develops and manufactures biological medicinal products, including monoclonal antibody drug substances for use in oncology clinical programmes. Its registered office is at Alderley Science Park, Mereside, Cheshire SK10 4TG.

2. The Defendant ("Cryovance") is a company incorporated in England and Wales which carries on the business of providing specialist temperature-controlled (cold-chain) logistics and transport services to the pharmaceutical and life-sciences sectors. It holds a Wholesale Distribution Authorisation (WDA(H)) and trades on the basis that it operates to Good Distribution Practice ("GDP") standards.

The Services Agreement

3. By a written Logistics and Cold-Chain Services Agreement dated 22 March 2024 (the "Services Agreement"), Cryovance agreed to provide to Hartwell temperature-controlled storage and transport services for biological materials, including the collection, transport and delivery of drug substance consignments within a validated cold-chain.

4. It was an express term of the Services Agreement (clause 4.1) that Cryovance would transport all consignments described as "cold-chain (2–8°C)" within a continuously maintained temperature range of 2°C to 8°C, and that any deviation outside that range would be recorded, alarmed and reported to Hartwell without delay.

5. It was a further express term (clause 4.3) that each consignment would be carried in qualified, calibrated and continuously data-logged refrigerated equipment, and that Cryovance would maintain and make available the temperature data log for each consignment.

6. It was an express term (clause 4.4) that Cryovance would not break, interrupt or deviate from the validated transport route or the validated equipment configuration without Hartwell's prior written approval.

7. Further or alternatively, it was an implied term of the Services Agreement, by reason of section 13 of the Supply of Goods and Services Act 1982, that Cryovance would carry

out the services with reasonable care and skill, and in accordance with applicable GDP requirements.

The First Consignment (14 September 2025)

8. On 14 September 2025 Cryovance collected from Hartwell's Alderley Park facility a consignment comprising batch DS-2025-041 of HRX-118 monoclonal antibody drug substance ("the First Consignment"), for delivery to Hartwell's contract fill-finish partner in Reinbek, Germany. The First Consignment was labelled and documented as cold-chain (2–8°C).

9. In breach of clauses 4.1, 4.3 and 4.4 of the Services Agreement, and in breach of the implied term, the refrigeration unit of the vehicle carrying the First Consignment failed in the early hours of 15 September 2025. The temperature within the load compartment rose to and remained above 8°C for a continuous period of not less than nine hours, reaching a peak of 19.4°C, as shown by the data logger recovered on delivery.

10. The excursion was not alarmed or reported to Hartwell at the time, contrary to clause 4.1. Hartwell first became aware of the excursion when it reviewed the recovered data-logger record after delivery on 16 September 2025.

11. HRX-118 drug substance is a temperature-sensitive biological product with no permitted excursion above 8°C. On a stability assessment carried out by Hartwell's Qualified Person, the First Consignment was found to be out of specification and unfit for further processing. Batch DS-2025-041 was quarantined and subsequently destroyed.

The Second Consignment (9 October 2025)

12. On 9 October 2025, notwithstanding Hartwell's notification to Cryovance of the first excursion, Cryovance collected a further consignment comprising batch DS-2025-047 of HRX-118 drug substance ("the Second Consignment") for the same destination. The Second Consignment was also documented as cold-chain (2–8°C).

13. In breach of the same terms, the driver carrying the Second Consignment deviated from the validated route and left the refrigerated unit switched off during a rest period of approximately five hours on 10 October 2025. The temperature within the load compartment rose to a peak of 14.1°C. Batch DS-2025-047 was likewise found to be out of specification and was destroyed.

Loss and Damage

14. By reason of the matters set out above, Hartwell has suffered loss and damage, full particulars of which are set out in the Schedule of Loss served with these Particulars. In summary:

    (a) the value of the destroyed batch DS-2025-041 was £1,420,000;

    (b) the value of the destroyed batch DS-2025-047 was £1,165,000;

    (c) Hartwell incurred re-manufacture and expediting costs to replace the destroyed material and to mitigate delay to its clinical-supply schedule of £612,400;

    (d) Hartwell incurred additional Qualified Person investigation, quarantine and controlled-disposal costs of £88,600.

15. The total of Hartwell's direct losses is £3,286,000.

The Limitation of Liability Clause

16. Cryovance has asserted that its liability is limited by clause 11.3 of the Services Agreement, which purports to cap its aggregate liability at the greater of £500,000 or the charges paid by Hartwell in the twelve months preceding the claim.

17. Hartwell will contend that clause 11.3 does not, on its proper construction, limit liability for breach of the core cold-chain obligations in clause 4, alternatively that it is unenforceable as against Hartwell because it fails to satisfy the requirement of reasonableness under the Unfair Contract Terms Act 1977, having regard (among other things) to the fact that the excursions resulted from a reckless disregard of GDP obligations and from a repeated failure following notification of the first incident.

Interest

18. Hartwell claims interest on the sums found due pursuant to section 35A of the Senior Courts Act 1981 at such rate and for such period as the Court thinks fit.

AND the Claimant claims:

1. Damages in the sum of £3,286,000;

2. Interest pursuant to section 35A of the Senior Courts Act 1981;

3. Costs.

STATEMENT OF TRUTH

The Claimant believes that the facts stated in these Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: .....
Name: Naomi Adeyemi
Position: General Counsel & Company Secretary, Hartwell Pharma Limited
Dated: 11 February 2026

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ — Solicitors for the Claimant